

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS OCTOBER TERM, A.D. 2024

BEFORE HER HONOR: SIE-A-NYENE G. YUOH..... CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA..... ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR..... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON..... ASSOCIATE JUSTICE

Adama Sekou Kromah, thru his Attorney-In-Fact, Sekou)
Tokola of the City of Monrovia, Liberia.....Appellant)

Versus)

APPEAL

Mohammed Barry, and all those under his control, also of the)
City of Monrovia, Republic of Liberia..... Appellee)

GROWING OUT OF THE CASE:)

Mohammed Barry, and all those under his control, of the City)
of Monrovia, Liberia..... Movants)

Versus)

MOTION FOR
RELIEF FROM
JUDGMENT

Adama Sekou Kromah, thru his Attorney-In-Fact, Sekou)
Tokola of the City of Monrovia, Liberia..... Respondent)

GROWING OUT OF THE CASE:)

Mohammed Barry, and all those under his control, of the City)
of Monrovia, Republic of Liberia..... Appellants)

Versus)

APPEAL

Adama Sekou Kromah, thru his Attorney-In-Fact, Sekou)
Tokola of the City of Monrovia, Liberia..... Appellee)

GROWING OUT OF THE CASE:)

Adama Sekou Kromah, thru his Attorney-In-Fact, Sekou)
Tokola of the City of Monrovia, Liberia..... Plaintiff)

Versus)

SUMMARY
PROCEEDINGS TO
RECOVER POSSESSION
OF REAL PROPERTY

Mohammed Barry, and all those under his control, also of the)
City of Monrovia, Republic of Liberia.....Defendants)

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

The appellant herein, Adama Sekou Kromah, by and thru his Attorney-In-Fact, Sekou Tokola, is before this Court seeking review of the July 9, 2021 final ruling on a motion for relief from judgment rendered by the Sixth Judicial Circuit, Civil Law Court, Montserrado County in favor of the appellee herein, Mohammed Barry.

The certified records show that on August 12, 2019, the appellant instituted an action of summary proceedings to recover possession of real property against the appellee and all those acting under his control. The appellant alleged in his complaint that he duly notified the appellee to vacate his premises, but the latter failed to heed his notice, thus prompting the appellant to institute the action.

The records also show that the writ of summons and the complaint were served upon the appellee, notifying him to appear for the hearing thereof on August 14, 2019. On the scheduled date of hearing, the appellee's counsel filed an excuse and requested the court to reassign the case for another date. On August 22, 2019, another notice of assignment was served upon the appellee to appear for hearing of the complaint on the 28th day of August, 2019, and again the appellee's counsel failed to appear, but filed an excuse requesting for the case to be reassigned, and same was granted by the magisterial court. The case was thereafter reassigned for hearing on September 3, 2019. This time around, the appellee was present on the scheduled date, but requested the court to grant him a continuance until September 6, 2019, to afford him the opportunity to submit his title instrument which he relied upon to take possession of the disputed property; this request for continuance was again granted by the court. On the said date of September 6, 2019, the appellee's counsel again failed to appear for the hearing or file a formal excuse with the court. Notwithstanding, the court proceeded to reassign the case for the 5th time and scheduled same for October 2, 2019. On the said date, the appellee's counsel failed to appear or file an excuse to justify his absence. Thereafter, two more notices of assignment were issued for hearing on October 8, 2019 and November 19, 2019, respectively, but the appellee and his counsel failed to appear. At the call of the case for hearing on November 19, 2019, the appellant requested, and was granted a judgment by default. Thereafter, the appellant made perfect his default judgment by adducing his title deed for the subject property in addition to the testimonies of two witnesses, both of who testified to the appellant's ownership of the subject property. On November 27, 2019, following the close of the evidence by the appellant, the magisterial court ruled in favor of the appellant and ordered the appellee ousted from the subject property.

On December 23, 2019, more than one month after the final ruling of the magisterial court, the appellee filed a four (4) count motion for enlargement of time essentially alleging therein that the failure of the sheriff to serve copy of the court's final ruling on the appellee's counsel was tantamount to denial of the right to an appeal. It is worth noting that although the appellee's counsel was absent on the date the final ruling of the magisterial court was rendered, the court did appoint a counsel to announce an appeal on behalf of the appellee, which duty was performed by the court appointed counsel.

Howbeit, the records show that the motion for enlargement of time was granted, and the appellee was permitted to file his bill of exceptions on March 23, 2020, more than three months after the final ruling by the magisterial court, and an appeal perfected filed with the Sixth Judicial Circuit, Civil Law Court, Montserrado County.

On February 23, 2021, eleven (11) months after the filing of the bill of exceptions, arguments were had on the appeal, *pro et con*, and thereafter ruling was reserved. While the appeal remained pending final determination, on May 26, 2021, the appellee filed a four (4) count bill of information, asserting therein that while the appeal remained pending and undetermined, the appellant had proceeded to evict the appellee's tenants from the subject property and removed the roof of said building; that the action of summary proceedings to recover possession of real property having been initiated in the magisterial court, an appeal of the final ruling therefrom acted as a stay on its enforcement. Consequently, the appellee, who was then the informant, petitioned the trial court to restore the parties to *status quo*, thereby reinstating the appellee's possession of the disputed property.

On May 28, 2021, the Sixth Judicial Circuit, Civil Law Court, Montserrado County consolidated the bill of information and the appeal and ruled thereon, denying the appeal and affirming the ruling of the West Point Magisterial Court. The appellee's counsel noted exceptions to the said ruling and announced an appeal to the Supreme Court. We quote below excerpt of the Circuit Judge's final ruling, to wit:

"...The [magisterial] court assigned the case finally for November 16 and again counsel for the defendant failed to appear. Consequently, as the result of the dilatory tactics employed by the counsel for the defendant, this case spent 72 days in the court below, thereby giving reason for which the judge below ruled in default and entered final judgment. It is from this final judgment that the appellant has filed a bill of exceptions and required this court to review.

This court says that under our law, every citizen is to be accorded due process, that is to say, is required to have his/her day in court and that our rules governing the Magisterial Court require that court not to maintain a case beyond thirty days. In the instant case, the case in question was maintained in the court below for seventy-two days all on account of the appellant who appealed to this court. This court therefore does not see any justification for such a frivolous appeal...

The said appeal is hereby dismissed in its entirety and the judgment as entered by Magistrate Cooper is hereby sustained. The Clerk of this court is hereby ordered to send a mandate to the court below ordering it to enforce its judgment. AND IT IS HEREBY SO ORDERED".

While the appeal announced by the appellee from the above quoted final ruling of the circuit court remained pending perfection, on June 14, 2021, the appellee filed a five (5) count motion for relief from judgment before the same court, the Sixth Judicial Circuit, Civil Law Court, Montserrado County contending *inter alia* that the said court "*inadvertently disposed of the appeal without taking into consideration that when a case is appealed from the magisterial court to the circuit court, the circuit court acts as an appellate court to review the entire case on trial de novo...*"; that the appellant failed to perfect his default judgment in that one of his

witnesses testified that the appellee did have a valid lease agreement at the time the action was commenced before the West Point Magisterial Court.

In his resistance to the motion for relief from judgment, the appellant asserted that the appeal in the summary proceedings to recover possession of real property case had already been decided by the Civil Law Court and an appeal therefrom had been announced to the Supreme Court; that appeals from final ruling of the magisterial courts are reviewable before the circuit courts as appeals and not trial de novo as asserted by the appellee.

On July 9, 2021, the then trial judge presiding over the Sixth Judicial Circuit, Civil law Court, who had previously consolidated the appeal from the summary proceedings to recover possession of real property and the bill of information filed by the appellee, and had ruled thereon in favor of the appellant, having entertained arguments on the motion for relief from judgment, ruled thereon granting said motion, thereby rescinding his ruling on the appeal and the bill of information. We quote hereunder pertinent excerpt of the trial court's ruling on the motion for relief from judgment, to wit:

"...This court says that from a careful perusal of the records in these proceedings, it realized that justice had been miscarried by the unethical act of the lawyer below and gross error on the part of the magistrate in rendering a judgment against the appellant...The actual fact discovered herein is that the appellants have a deed from their grandfather to their father for the property sued for and the deed was given to their lawyer while the case was in the magisterial court. Why the deed was not submitted in court until the case was ruled against them is a mystery.

More besides, the appellant's father had earlier entered a lease agreement with the lessee for a period of ten (10) years from November 1, 2009, to November 1, 2019, which agreement was witnessed by the uncle who sold the building. At the time the Summary Proceedings to Recover Possession of Real Property was filed in August 2019, the lease agreement which is a form of title was also still in full force and effect. So Summary Proceedings could not lie against the party.

On the face of the lease agreement, Emmanuel Yarwon and Venven Yarwon signed as witnesses while appellant/defendant's father Jerry Yarwon signed as lessor; which facts revealed that defendants' uncle who allegedly sold the property is aware that the property is for the defendant's/appellants' father Jerry Yarwon. How could the uncle have sold his brother's building when his children are available? Section 111.1 of the Decedents and Estates Law says in the absence of a wife, it is the children that are entitled to letter of administration and even in the absence of the children, it is the grandchildren that are eligible.

In the plaintiff/appellee's own testimony before the magisterial court in a default judgment proceeding, the principal witness acknowledged that the property was for the late Jerry Yarwon who issued power of attorney to Adama Kromah. Under Chapter 42, Section 42.6 of the Civil Procedure Law, the Statute says "on an application for judgment by default, the applicant shall file proof of service of the

summons and complaint, and give proof of the facts constituting the claim, the default, and the amount due”.

In the instant case, though the plaintiff established proof of service of the summons and complaint, but from their own testimonies they established that the property is owned by the appellant's late father, Jerry Yarwon, who lease agreement they signed as witnesses. By this testimony, the plaintiff failed to perfect the imperfect judgment and establish his proof of ownership by preponderance of evidence. From the evidence before this court the action of the lawyer below and the judgment of the magistrate illegally deprived the appellants of their inheritance, the only property left by their late father, Jerry Yarwon.

The court further observed that while the appeal was pending, the appellant/defendants were evicted, contrary to the law in this jurisdiction that an appeal places a **stay** on the enforcement of judgment.

Wherefore, and in view of the foregoing facts and circumstances, and the law controlling, the movant's motion for relief from judgment is granted. The default judgment of the magisterial court is hereby reversed and the appellee are hereby ordered evicted from the said property with immediate effect. The clerk of this court is hereby ordered to issue a writ of possession and have same placed in the hands of the Sheriff of this court to have the appellee dispossessed and the appellants repossessed. All costs against the appellee. AND IT IS HEREBY SO ORDERED”.

The appellant noted his exceptions to the ruling and announced an appeal to the Supreme Court, and thereafter filed a ten (10) count bill of exceptions. Having reviewed the records vis-à-vis the bill of exceptions, we have determined that the crux of this appeal is the trial court's basis for granting the motion for relief from judgment. Hence, the issue determinative of this appeal is whether the granting of the motion for relief from judgment by the trial court was done within the pale of the law.

Section 41.7 of the Civil Procedure Law, captioned “*Relief from Judgment*”, stipulates the basis for granting a motion for relief from judgment. Sub-section (2) of the said provision states thus:

“2. **Ground:** On motion and upon such terms as are just the court may relieve a party or his legal representative from a final judgment for the following reasons:

- (a) Mistake, inadvertence, surprise, or excusable neglect;
- (b) Newly discovered evidence which, if introduced at the trial, would probably have produced a different result and which by due diligence could not have been discovered in time to move for a new trial under the provisions of section 26.4 of this title;
- (c) Fraud (whether intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party;
- (d) Voidness of the judgment; or

(e) Satisfaction, release, or discharge of the judgment or reversal or vacating of a prior judgment or order on which it is based, or in-equitableness in allowing prospective application to the judgment.”

We note that the basis cited by the circuit court judge for the granting of the motion for relief from judgment as stated in the ruling quoted *supra* is contrary to the provision of the statute quoted above, as well as the evidence shown in the records. For instance, the judge stated in his ruling that the appellant herein, who was the plaintiff in the main suit before the West point magisterial Court, failed to perfect the default judgment that was granted in his favor; that the evidence presented proved that the actions of the lawyer and magistrate were intended to illegally deprive the appellee, who was then defendant before the West Point Magisterial Court, of his inheritance; that the evidence showed that the present appellee who was then the defendant, possessed a deed for the subject property, which deed was presented to the appellee/defendant's lawyer.

However, the judge affirms that the purported deed was not presented before the magisterial court in defense of the appellee's claim of title, as the record is void of the purported deed referenced by the circuit court judge; and even if same was present, we wonder how said instrument could have formed part of the records on appeal before the Civil Law Court, given that same was not introduced into evidence before the magisterial court. It is the law extant that appeals from the magisterial courts to the circuit courts, are not heard *de novo*, but heard in an appellate nature. *New Judiciary Law*, Rev. Code 17:12.3 (Amended 2012)

Secondly, the assertion by the circuit court judge that the appellant herein failed to perfect his default judgment is not supported by the records. Contrary to this assertion, the records show that the appellant, then plaintiff, did prove his ownership of the subject property by presenting his title deed and entering same into evidence before the magisterial court.

Furthermore, we observe that the appellee cites as the basis of his motion for relief for judgment that the West Point Magisterial Court should have refused jurisdiction over the action of summary proceedings to recover possession of real property because the appellee had a valid lease agreement at the time the action was instituted.

Our review of the records shows that the following the issuance and service of the writ of summons upon the appellee, he failed to appear to defend his title to the subject property despite the several notices of assignment for hearing that was served upon the appellee's counsels. All we see are numerous excuses, and in some instances, outright defiance, as no excuses were filed by the appellee in said instances. Although the complaint was filed in August, 2019, it wasn't until sometime November 19, 2019, that the appellant's motion for default judgment was granted, at which time the appellant presented evidence to substantiate the allegations in his complaint.

Even assuming *arguendo* that the appellee had a valid lease agreement at the time the complaint was filed, which agreement was said to expire on November 1, 2019, at the time the appellant's default judgment was granted by the magisterial court and thereafter perfected by the appellant, that is on November 26, 2019, the purported lease agreement had expired and was without any legal effect. Therefore, even if the appellee had been present in court when the case was heard, and had then raised the issue of title, the argument would have been defective given that the purported lease agreement relied upon by the appellee had already expired. It would not be far-fetched for a reasonable mind to assume that the appellee having realized that

his title instrument had expired deliberately refused to appear for the hearing, having been duly notified thereof by several notices of assignment.

We therefore hold that the West Point Magisterial Court acted within the ambit of the law when it entertained hearing on the case which is subject of the present appeal.

As to the issue we determined dispositive of this appeal, we find no legal basis as provided for the Civil Law Court granting the appellee's motion for relief from judgment. Our meticulous review of the records shows that none of the reasons for the granting of a motion for relief from judgment, as provided for in Section 41.7 (2) of the Civil Procedure Law, was established by the records on appeal from the final ruling of the West Point Magisterial Court, especially noting that the only aspect of the said appeal that was subject to review were the alleged errors stated in the bill of exceptions, and not the entire case, *de novo*, as argued by the appellee.

It is therefore our considered opinion that the ruling on the motion for relief from judgment rendered by the then presiding Judge at the Sixth Judicial Circuit, Civil Law Court, Montserrado County, was *ultra vires*.

Before concluding this Opinion, this Court finds it necessary to address the unprofessional and callous conduct displayed by Counselor Sennay Carlor, II. At the time of his representation of the appellee in both the circuit and magisterial courts, Counsellor Carlor was, and remains, a Public Defender employed by the Judiciary. Despite this, he chose to take on a private case during the course of his official duties, but failed and neglected to uphold his duty as a lawyer to his client as evidenced by his sheer display of neglect and indifference in pursuing the legal interest of his client; such attitude is an affront to the legal profession and same is sternly discouraged.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling on the motion for relief from judgment rendered by the Sixth Judicial Circuit, Civil Law Court is reversed, and considering the egregious nature of the statement contained in the trial judge's ruling that Counsellor Sennay Carlor, II. concealed the deed of his client, Counsellor Sennay Carlor, II. is hereby forwarded to the Grievance and Ethics Committee for an investigation. The appellee is at liberty to pursue the requisite action in defense of his property rights. Howbeit, the appellee is ordered ousted and evicted from the appellant's property and the appellant put in possession according to the metes and bounds of his deed with the aid of a surveyor. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and give effect to this Judgment. Costs are ruled against the appellee. AND IT IS HEREBY SO ORDERED.

Reversed

When this case was called for hearing, Counsellor Richard J. Scott, Jr. of the Primus Law Group appeared for the appellant. No Counsellor appeared for the appellee.